

24STCV07727 24STCV07727

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-28

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 28, 2026

CASE NUMBER

24STCV07727

MOTION

Motion for Reconsideration

MOVING PARTY

Plaintiff Tiffany

McBride

OPPOSING PARTY

Defendants Ernesto Soltero and Gabriela Robles

MOTION

Plaintiff Tiffany

McBride ("Plaintiff") moves for reconsideration of this Court's order of March 23, 2026, in which the Court denied Plaintiff's motion to enforce a settlement agreement. Defendants Ernesto Soltero and Gabriela Robles ("Defendants") oppose the motion.

ANALYSIS

Code of Civil

Procedure section 1008, subdivision (b) requires a party seeking reconsideration to "state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown" in the current motion. The moving party on a motion for reconsideration "must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time." (Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342, internal quotations and citations omitted.)

Plaintiff argues,

in essence, the Court's ruling, as reflected in the March 23, 2026 order, is incorrect. That is not a basis for reconsideration.

Plaintiff maintains

the Court did not address various authorities and evidence which were before it. These authorities and evidence cannot serve

as the basis for a motion for reconsideration, as they are not new or different evidence and authorities from those before the Court when the Court denied Plaintiff's motion. Moreover, Plaintiff

has presented no authority for the proposition the Court is obligated to remark on everything the parties present to it in support and in defense of a motion, especially when the Court provides the legal and factual bases for its ruling.

Plaintiff also

argues the Court did not permit her to present all her authorities at oral argument. However, "Plaintiff expressly disavows any reliance on the hearing limitation as an independent ground for reconsideration." (Motion for Reconsideration, p. 16.) Moreover, to the extent Plaintiff desired to introduce additional authorities in response to any

argument made by Defendants, she was obligated to do so through her reply brief, otherwise she would be precluded for due process and fairness reasons to present them for the first time at the hearing of the matter.

For these reasons,
including Plaintiff not satisfying the requirements for bringing a motion for reconsideration in the first instance, the motion is denied.

Plaintiff is to
give notice of the Court's ruling and to file proof of service of same.